



COLLABORATIVE PLANNING

Telephone: 07946612450

Email: hello@collaborative-planning.co.uk

Website: www.collaborative-planning.com

The Planning Inspectorate
3D Eagle Wing
Temple Quay House
2 The Square
Bristol, BS1 6PN
11th of February 2026

FINAL COMMENTS ON BEHALF OF THE APPELLANT

Appeal Ref: 6003242

Site: Land at Reeves Close, Porthleven

1. Introduction

These final comments are submitted in response to the Statement of Cornwall Council dated 2 February 2026 and to the representations made by interested parties.

The Appellants acknowledge and respect the strength of local feeling regarding the land at Reeves Close. However, the appeal must ultimately be determined in accordance with the Development Plan and the National Planning Policy Framework (NPPF), having regard to material planning considerations and objective evidence. Neither the Council's Statement nor the third-party representations introduce new evidence that displaces the conclusions set out in the Appellant's Statement of Case.

2. Response to the Council's Statement

The Council accepts that, in locational terms, the site lies within the defined settlement boundary and would ordinarily represent an appropriate infill opportunity. This is an important acknowledgment. The appeal site sits within an established residential cul-de-sac, is sustainably located in relation to services and facilities, and accords with the spatial strategy of the Development Plan. The sole substantive issue therefore remains the interpretation and application of paragraph 104 of the NPPF.

The Council maintains that the land functions as valued open space and is maintained to a good standard. However, the evidence before the Inspector demonstrates that the land has never been formally adopted by the Council, has never been equipped, and performs no strategic green infrastructure function. Its original purpose was partly associated with a drainage contingency which became redundant when the development connected to the main sewer. Since that time, it has remained a simple grassed area without defined recreational infrastructure. While informal mowing has occurred, this does not elevate the land to a protected or irreplaceable planning designation. Planning policy protects open space on the basis of demonstrable function and policy designation, not sentiment or occasional maintenance.

The Council's own Principal Public Space Officer confirmed that the site is below normal size thresholds, is not strategic, and lies within acceptable walking distance of the Porthleven Recreation Ground. Importantly, he confirmed that mitigation through a financial contribution would be appropriate. The Council's Statement does not adequately explain why that specialist advice should be given reduced weight.

In relation to paragraph 104 of the NPPF, the Council asserts that no acceptable alternative provision has been demonstrated. This is not correct. A Unilateral Undertaking has been submitted securing the full contribution calculated by the Council's own officer, in the sum of £16,855, to be directed to improvements at the Porthleven Recreation Ground or equivalent facilities within the parish. Paragraph 104(b) allows development where the loss of open space would be replaced by equivalent or better provision in terms of quantity and quality in a suitable location. The Recreation Ground is a formal, equipped and well-used facility within policy-compliant walking distance. Investment in that facility would provide demonstrably greater recreational value than retention of a small, unequipped parcel of grass.

The Council's suggestion that project-specific costing must be identified has no express foundation within paragraph 104 and mischaracterises the Public Space Officer's advice, which described such detail as preferable rather than mandatory. The absence of named projects does not invalidate the mitigation mechanism.

The Council also raises concern regarding visual contribution and the character of the cul-de-sac. However, this is an outline application. Matters of appearance, layout and landscaping remain reserved. There is no reason why a carefully designed dwelling could not be accommodated while retaining appropriate visual openness and respecting the established character of Reeves Close.

The Council seeks to distinguish the Comfort Wartha appeal. Nevertheless, the factual similarities remain significant. That case involved historic open space linked to an earlier consent, informal community use, lack of formal adoption, and the securing of a financial contribution toward a better-equipped recreation ground. The Inspector concluded that the contribution secured an appropriate level of replacement provision and allowed the appeal. While each case must be considered on its own merits, the reasoning in that decision remains directly relevant and persuasive.

Finally, the Council acknowledges that it cannot presently demonstrate a five-year housing land supply and that the presumption in favour of sustainable development under paragraph 11(d) of the NPPF is engaged. Even modest contributions to housing supply attract weight, particularly where they deliver self-build accommodation in line with national objectives. Once mitigation is secured, the alleged harm is limited and localised and does not significantly and demonstrably outweigh the benefits.

3. Response to Interested Party Representations

The Appellants recognise the views expressed by local residents and acknowledge that the land has been informally used for dog walking and occasional social activities. However, informal use does not render land irreplaceable under planning policy. Paragraph 104 requires either demonstration of surplus or the securing of equivalent provision. The latter has been achieved through the Unilateral Undertaking.

Some representations state that the Council regularly maintains the land. The planning history demonstrates that formal adoption never occurred. Occasional contractor visits or voluntary upkeep do not establish statutory open space status.

Concerns regarding gradient and accessibility to the Recreation Ground are noted. However, the Recreation Ground lies within accepted accessibility standards and there is no independent evidence before the Inspector to demonstrate that it is inaccessible or unsuitable.

Representations also refer to wildlife and ecological value. The site is not designated habitat land and any biodiversity matters can be appropriately addressed at reserved matters stage. No ecological objection has been raised by statutory consultees.

Finally, several residents rely on the historic Section 106 Agreement. While that agreement forms part of the planning history, decisions must be made in accordance with current Development Plan policy and national guidance. Planning obligations do not freeze land use in perpetuity where policy-compliant mitigation is secured.

4. Planning Balance

The harm identified relates to the loss of a small, non-strategic and unequipped area of grass. That harm is fully mitigated through a financial contribution directed toward enhancement of an established and well-used recreation facility. Against this, the proposal delivers a self-build dwelling within the settlement boundary, makes efficient use of underutilised land, contributes toward housing supply in circumstances where the presumption in favour of sustainable development applies, and provides measurable improvements to community recreational provision.

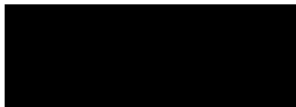
When assessed in the round and in accordance with paragraph 11 of the NPPF, the limited and mitigated nature of the identified harm does not significantly and demonstrably outweigh the benefits of the proposal.

5. Conclusion

Neither the Council's Statement nor the third-party representations identify compelling policy conflict or material harm that would justify dismissal of this appeal. The proposal is sustainably located, capable of sensitive design, supported by proportionate mitigation, and consistent with both the Development Plan read as a whole and national policy.

For these reasons, the Inspector is respectfully invited to allow the appeal and grant Outline Planning Permission.

Kind regards,

A black rectangular box redacting the signature of Chloe Pitt.

Chloe Pitt MA MRTPI
Collaborative Planning